

1.

CASE #	CASE NAME	HEARING NAME
CVME2507293	WASSGREN VS WASSGREN	MOTION FOR TEMPORARY STATUS-QUO

Tentative Ruling: DENY WITHOUT PREJUDICE

The Complaint in this matter was filed on July 1, 2025. Plaintiffs' Complaint alleges 6 causes of action for (1) waste, private nuisance; (2) negligence and negligence per se; (3) harassment; (4) monetary abuse; (5) personal injury; (6) infliction of emotional [distress].

Briefly, Plaintiffs allege that they co-own 81.25 % of the undivided property at issue, and Defendant owns 18.75 %. The property consists of one main home and an ADU, both appurtenant to the co-owned property, located on the lower portion of the 17.31 acres where the shared water well and electric panel, and power pole are. The main entrance is shared and used by all, including Fedex, UPS, and Amazon deliveries. Defendant has allegedly been unwarrantedly staying in the co-owned main home, the co-owned ADU remains unoccupied, and contains Defendant's waste. Defendant is claiming sole ownership of both the main home and the ADU. Apparently, Defendant has turned off or threatened to turn off Plaintiffs' utilities, and on more than one occasion locked Plaintiffs out of the property. The Sheriffs have made several trips to the property, resulting in issuance of a ticket to Defendant.¹

The prayer, in part, asks for:

- For a preliminary and permanent injunction enjoining Defendants to refrain from blocking any pathways, easements and roads, whether recorded or not. As well as refraining from blocking, the front entrance with any form of a gate, fence, or other obstacles. (Noting that the road and easement at the main entrance have been opened for use freely, for over 40 years with NO GATE). Noting also there are two other gates rarely used, that may be kept closed as Used mainly for fire and emergency use. Also, refraining Defendant from bringing anymore debris and waste(junk) to this shared property, referenced in this complaint.
- Also, Defendant to refrain from yelling or talking in ANY negative manner to the Defendants, (Noting the foul threatening language of Defendants text messages). Including stating that Plaintiffs should not be in what defendant calls " his areas" (noting these areas referenced have been used by" All" owners, residents, guests, delivery companies, etc. for many years) That Defendant also Refrain from occupying the main home, AT ALL, including the front porch area under the awnings. Leaving this home as it is, with no destruction, (as defendant threatened to start dismantling the homes if he can't have them himself as sole owner). (See texts stating so. Exhibit 21.)

¹ The Complaint and other documents written by Plaintiffs are difficult to read as they are not clear and concise.

Defendant has filed a motion for temporary status- quo, property non- interference, reduced- contact, access- route, utility- preservation, and no- negative- contact orders pending trial. In a confusing way, Defendant asks the Court to issue temporary, mutual, practical rules that reduce direct- contact conflict, preserve access, prevent self-help property interference, preserve utilities and infrastructure, protect family members, visitors, helpers, and contractors, reduce negative contact, and reduce unnecessary agency escalation pending trial or further order of the Court. This motion is made pursuant to CCP § 128 and CCP §§ 525 through 534, including section 526 and related provisions, although the Ps & As do not fully brief the issues.

As written, the motion asks for various forms of relief under the following headings:

- REDUCED CONTACT AND DIRECT- FRONTAGE AVOIDANCE ARE NEEDED.
- NO- SELF- HELP PROPERTY INTERFERENCE ORDERS ARE NEEDED
- ROAD MAINTENANCE AND DUST- CONTROL LANGUAGE MUST BE NARROW
- MONITORING, RECORDING, AND FAMILY IMPACT
- AGENCY ESCALATION LANGUAGE MUST PRESERVE EMERGENCY CALLS
- UTILITIES AND INFRASTRUCTURE SHOULD BE PRESERVED PENDING TRIAL

The opposition is written in a similar fashion, with no citation to authority, contending that the motion is a falsehood with confusing evidence that makes no sense.

Procedural Issues

While not an exhaustive list, the format of the motion does not comply with the California Rules of Court:

CRC rule 2.104, 2.105: Font size must be at least 12-point type with typeface essentially equivalent to Courier, Times New Roman or Arial. Here, the font size in moving paper appears to be small than 12-point type.

CRC rule 2.108: Lines on each page shall be numbered consecutively and shall be *either* double-spaced or with 1 1/2 space between lines. Here, the motion is single-spaced.

CRC rule 3.113(b): The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced. Although moving Defendant is in pro per, he must still show compliance with the Rules. He does not provide a discussion on the law he is relying on for relief, and how the facts of this matter fall within the law. Instead, he cites CCP 525 through 534, including section 526 and related provisions with no discussion, leaving it up to the Court to piece together.

Merits

To the extent Defendant is seeking a preliminary injunction, to prevail on a motion for preliminary injunction, the moving party must show a likelihood of success on the merits and that the balance of hardships weighs in favor of granting the injunction. This

standard is articulated in *O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1463. The showing must be supported by competent evidence establishing a factual basis for relief, as emphasized in *Ancora-Citronella Corp. v. Green* (1974) 41 Cal.App.3d 146, 150. Declarations submitted in support of such motions must be made under personal knowledge to be admissible, pursuant to Evidence Code section 702.

Defendant makes no such showing. It is unclear what the photos submitted as evidence in this motion are introduced to show. The declarations of Defendant include long recitations of recent events. Perhaps the best way of handling this pro per v. pro per situation, AS THE Court is thinking, is to discuss these matters in open court, but as is, the moving papers are not formatted to provide for relief.

2.

CASE #	CASE NAME	HEARING NAME
CVME2508525	DOE A.G. VS COUNTY OF ORANGE	MOTION TO QUASH PLAINTIFF'S DOCUMENT SUBPOENA TO THE CUSTODIAN OF RECORDS FOR THE SHERIFF'S DEPARTMENT

Tentative Ruling Motion to quash – District Attorney's Office Records: QUALIFIED DENIED with "meet and confer" ordered.

The motion to quash is DENIED for reason that the categories of documents requested by the subpoena are reasonably particularized and may be relevant or reasonably calculated to lead to admissible evidence. Discovery should be limited to matters which are not privileged and not within the scope of third-party right to privacy (Code Civ. Proc., § 2017.010) and, therefore, production should be subject to a joint stipulation containing a "first look" provision allowing the County's counsel to review and redact information which may disclose the identity of minor victims and to prepare a privilege log describing the redactions. The parties are ordered to meet and confer on entering a joint stipulation before Defendant may issue and serve amended subpoenas.

Motion to quash – Sheriff's Department Records: QUALIFIED DENIED with "meet and confer" ordered.

The motion to quash is DENIED for reason that the categories of documents requested by the subpoena are reasonably particularized and may be relevant or reasonably calculated to lead to admissible evidence. Discovery is be limited to matters which are not privileged and not within the scope of third-party right to privacy (Code Civ. Proc., § 2017.010) and, therefore, production should be subject to a joint stipulation containing a "first look" provision allowing the County's counsel to review and redact information which may disclose the identity of minor victims and to prepare a privilege log describing the redactions. The parties are ordered to meet and confer on entering a joint stipulation before Defendant may issue and serve amended subpoenas.

Defendant County of Orange ("Orange") moves for the second time to resolve discovery issues relating to Plaintiff's Subpoenas Duces Tecum served upon two separate governmental agencies: the Orange County District Attorney's Office and the Sheriff's